



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 4103: school districts; property; bonding authority

OLSON FLOOR AMENDMENT

1. Prohibits the School Facilities Oversight Board from including in the calculation to determine the ratio of a school district's enrollment to the school district's enrollment capacity any existing building that the school district leases as lessor if the lessee uses the building to provide instruction to students in kindergarten or any of the 1st through 12th grades.

OLSON FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 4103
(Reference to EDUCATION Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{[ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS]} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{[Orange lowercase underlining in double curly brackets]} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{[ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS]}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
~~{[Orange lowercase strikeout in double curly brackets]}~~ indicates that the amendment to an amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~<<Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 15, chapter 4, article 5, Arizona Revised
3 Statutes, is amended by adding section 15-492, to read:

4 15-492. School buildings: enrollment to enrollment capacity
5 ratio; election eligibility

6 A. NOTWITHSTANDING SECTION 15-491, IF THE RATIO OF A SCHOOL
7 DISTRICT'S [ENROLLMENT TO THE SCHOOL DISTRICT'S] ENROLLMENT CAPACITY IS
8 LESS THAN [] [FIFTY PERCENT], THE SCHOOL DISTRICT GOVERNING BOARD MAY
9 NOT CALL AN ELECTION TO EITHER:

10 1. DETERMINE WHETHER BONDS OF THE SCHOOL DISTRICT MAY BE ISSUED AND
11 SOLD.

12 2. CHANGE THE LIST OF CAPITAL PROJECTS OR THE PURPOSES AUTHORIZED
13 BY PRIOR VOTER APPROVAL TO ISSUE BONDS.

14 B. [THE RATIO OF] A SCHOOL DISTRICT'S [ENROLLMENT TO THE SCHOOL
15 DISTRICT'S] ENROLLMENT CAPACITY IS EQUAL TO THE SCHOOL DISTRICT'S AVERAGE
16 DAILY MEMBERSHIP AS PRESCRIBED IN SECTION 15-901 FOR THE PRIOR YEAR

1 DIVIDED BY THE NUMBER OF STUDENTS WHO CAN BE EDUCATED IN THE SCHOOL
2 DISTRICT'S EXISTING SCHOOL BUILDINGS, AS CALCULATED [~~PURSUANT TO SECTION~~
3 ~~41-5702.01~~] [BY THE SCHOOL FACILITIES OVERSIGHT BOARD CONSISTENT WITH THE
4 MINIMUM SCHOOL FACILITY ADEQUACY GUIDELINES ESTABLISHED PURSUANT TO
5 SECTION 41-5711]. {{THE SCHOOL FACILITIES OVERSIGHT BOARD MAY NOT INCLUDE
6 IN THE CALCULATION PURSUANT TO THIS SUBSECTION ANY EXISTING BUILDING THAT
7 THE SCHOOL DISTRICT LEASES AS LESSOR IF THE LESSEE USES THE BUILDING TO
8 PROVIDE INSTRUCTION TO STUDENTS IN KINDERGARTEN PROGRAMS OR ANY OF GRADES
9 ONE THROUGH TWELVE.}}

10 <<Sec. 2. Title 41, chapter 56, article 1, Arizona Revised
11 Statutes, is amended by adding section 41-5702.01, to read:

12 41-5702.01. School district buildings; academic square
13 footage; maximum student count

14 ON OR BEFORE _____ OF EACH YEAR, THE BOARD SHALL CALCULATE THE
15 NUMBER OF STUDENTS WHO CAN BE EDUCATED IN THE EXISTING SCHOOL BUILDINGS,
16 CONSISTENT WITH THE MINIMUM SCHOOL FACILITY ADEQUACY GUIDELINES
17 ESTABLISHED PURSUANT TO SECTION 41-5711, FOR EACH SCHOOL DISTRICT IN THIS
18 STATE. THE BOARD MAY NOT INCLUDE SQUARE FOOTAGE FOR ANY SCHOOL BUILDING,
19 OR PORTION OF A SCHOOL BUILDING, THAT IS USED SOLELY FOR DISTRICT
20 ADMINISTRATION, STORAGE OF VEHICLES OR OTHER NONACADEMIC PURPOSES IN THE
21 CALCULATION PURSUANT TO THIS SECTION.>>

22 Enroll and engross to conform

23 Amend title to conform

JUSTIN OLSON

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